

See Instructions (EXP101) for help in filling out this form.

State of Minnesota

District Court

County of: _____

Court File Number: _____

Judicial District: _____

Case Type: Criminal

State of Minnesota

Plaintiff

VS

Maria-Alejandra O'Shaughnessy-Whitfield

Defendant

Notice of Hearing and Petition for Expungement (EXP102)

Minn. Stat. § 609A.03 or Inherent Authority

Notice to Law Enforcement / Government Agency / Prosecutor: Any objection to an expungement in this case shall be filed with the court as soon as possible, and within 60 days.

Hearing Information

The hearing in this case is scheduled on:

Date: _____, at _____ ☐ a.m. / ☐ p.m.

The hearing will be:

☐ **Remote using Zoom** (See the "Remote Hearing Information" Help Topic online at www.mncourts.gov/Remote-Hearings.aspx.)

Zoom meeting ID: _____

Passcode: _____

OR

☐ **In Person**

Courthouse address: _____

Courtroom number: _____

Petition for Expungement

1. List your full name:

First: Maria-Alejandra

Middle: Bernadette-Consuelo

Last: O'Shaughnessy-Whitfield

2. List any other legal names or aliases you have been known as: _____

3. List your date of birth: 1968-12-31

4. List your current address:

Street Address: 1188 Upper Tallahatchie Crossing Road, Apartment 14B

City, State, Zip: Fort Saint Clairville, MN 56501-2214

5. List all the other addresses you have lived at since the date of the offense for which you are seeking an expungement: (give the street address, city, and state)

☐ Check this box if you have only lived at your current address (listed in #4) since the date of the offense.

6. **Reasons for this Request.**

Why are you asking for an expungement?

Include the following information:

- Whether you are asking for an expungement for employment, housing, or licensure reasons;
- The statutory or other legal authority under which you are seeking an expungement; and
- Why an expungement should be granted (give specific details).

I am asking for an expungement because:

Add another sheet if needed.

7. **Criminal Record.** Minnesota law requires you to give the full record of all your criminal convictions for misdemeanors, gross misdemeanors, or felonies; and criminal charges (including all criminal charges that have been continued for dismissal, stayed for adjudication, or have been the subject of pretrial diversion).

Give the following details about your criminal record (include information from Minnesota and any other state, federal court, and foreign countries):

- All charges, convictions, stays of adjudication or impositions of sentence, whether the conviction happened before or after the offense for which you are seeking expungement; and
- All pending charges or actions for misdemeanors, gross misdemeanors, or felonies.

Case #	County-State	Type of Charge	Date of Offense	Conviction Yes/No	Date of Conviction (if Yes)

Add another sheet if needed.

8. **Past Requests.** Have you ever asked for an expungement, pardon, or sealing of a criminal record before (whether for this offense or for any other offense, and whether it was granted or not)? ☐ Yes ☐ No

If yes, list each other request for an expungement, pardon, or sealing of a criminal record you have made: _____

Add another sheet if needed.

9. Qualification for Expungement.

Why do you qualify for an expungement?

- ☐ A criminal case against you for a possession of a controlled substance under Minn. Stat. §§ 152.024, 152.025, or 152.027 has been dismissed and the proceedings have been discharged under Minn. Stat. § 152.18. [Use *Order Concerning Sealing/Expunging of Record - Minn. Stat. § 609A.02, subd. 1 or 2* (court form EXP106).]
- ☐ You were certified or referenced for prosecution as an adult for a crime you committed when you were a juvenile. [Use *Order Concerning Sealing/Expunging of Record - Minn. Stat. § 609A.02, subd. 1 or 2* (court form EXP106).]
- ☐ A criminal matter was resolved your favor. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105).]
- ☐ You successfully completed the terms of a diversion program or stay of adjudication, and you have not been charged with a new crime for at least one year since completion of the diversion program or stay of adjudication. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105).]
- ☐ You were convicted of a petty misdemeanor or misdemeanor, or the sentence imposed was within the limits provided by law for a misdemeanor, and you have not been convicted of a new crime for at least two years since discharge of the sentence for the crime. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105).]
- ☐ You were convicted of a gross misdemeanor, or the sentence imposed was within the limits provided by law for a gross misdemeanor, and you have not been convicted of a new crime for at least three years since discharge of the sentence for the crime. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105)].
- ☐ You were convicted of a gross misdemeanor that is deemed to be for a misdemeanor pursuant to Minn. Stat. § 609.13, subd. 2(2), and you have not been convicted of a new crime for at least three years since discharge of the sentence for the crime. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105)].
- ☐ You were convicted of a felony violation of Minn. Stat. § 152.025, and you have not been convicted of a new crime for at least four years since discharge of the sentence for the crime. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105)].

- ☐ You were convicted of a felony that is deemed to be for a gross misdemeanor or misdemeanor pursuant to Minn. Stat. § 609.13, subd. 1(2), and have not been convicted of a new crime for at least four years since discharge of the sentence for the crime if the conviction was for an offense listed in Minn. Stat. § 609A.02, subd. 3(b); **or** five years since discharge of the sentence for the crime if the conviction was for any other offense. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105)].
- ☐ You were convicted of a felony violation of an offense listed in Minn. Stat. § 609A.02, subd. 3(b), and have not been convicted of a new crime for at least four years since discharge of the sentence for the crime. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105)].
- ☐ You were convicted of an offense that does not qualify for expungement under Minn. Stat. § 609A.02, subd. 3, but you believe you have rehabilitated yourself. You believe that the benefit to you outweighs the disadvantage to the public and the burden on the court. [Use *Findings of Fact, Conclusions of Law and Order to Seal/Expunge Judicial Records Only* (court form EXP107).]

10. Offense Details. What is the offense you want to expunge?

Case #: _____

Jurisdiction/City where the offense occurred: _____

Type of offense: _____

Date of offense: _____

11. Victims. Were there any identifiable victims in this case? ☐ Yes ☐ No

If Yes, list the names of the victims: _____

12. Protection, Restraining, or No-Contact Orders. Is there now, or has there ever been, an Order for Protection, Restraining Order, or other No-Contact Order prohibiting you from contacting the victims?

- ☐ Yes. [Include copies of any orders with this *Petition*.]
☐ No.
☐ N/A (not applicable because there were no identifiable victims in this case).

13. Personal Rehabilitation. Describe what steps you have taken since the time of the offense toward personal rehabilitation, including treatment, work, or other personal history that demonstrates rehabilitation.

I have taken the following steps toward personal rehabilitation:

Add another sheet if needed.

14. Do you want to ask the court to seal any private or confidential data submitted by the responding agencies or other jurisdictions? [Minn. Stat. § 609A.03, subd. 3(d)]

☐ Yes ☐ No

15. Do you want to ask that, if an expungement is ordered, each agency and jurisdiction that receives the order must send a letter to you at the address provided confirming receipt of the expungement order and that the record has been expunged? [Minn. Stat. § 609A.03, subd. 8(b)]: ☐ Yes ☐ No

16. **Mitigating or Aggravating Factors.** Explain any mitigating or aggravating factors relating to the underlying crime, including your level of participation, the context and circumstances of the underlying crime, and what risk, if any, you pose to individuals or society.

Add another sheet if needed.

I declare under penalty of perjury that everything I have stated in this document is true and correct. Minn. Stat. § 358.116

Date: _____

Signature: _____

County and state where signed:

Name: Maria-Alejandra O'Shaughnessy-Whitfield

Address: 1188 Upper Tallahatchie Crossing Road, Apartment 14B

City/State/Zip: Fort Saint Clairville, MN 56501-2214

Phone: (218) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

State of Minnesota

County

District Court

Judicial District: _____

Court File Number: _____

Case Type: Criminal

State of Minnesota

vs

Proof of Service (EXP104)Maria-Alejandra O'Shaughnessy-Whitfield
Defendant

I, _____ (name of person who mailed the documents), state that on _____ (date), I served the attached documents, *Notice of Hearing and Petition for Expungement* and proposed *Order*, by mailing true and correct copies to the parties checked below at the addresses listed by putting envelopes with sufficient postage in the U.S. Mail in the City of _____.

1 ☒	MN Bureau of Criminal Apprehension CJIS-CCH-Court Orders / Petitions 1430 Maryland Avenue East St. Paul, MN 55106 (Required)	5 ☒	_____ County Dept. of Corrections (Probation) _____ _____ (Required)	9 ☐	MN Dept. of Human Services Office of Inspector General, Legal Counsel Office P.O. Box 64953 St. Paul, MN 55164-0953 (check box & use if related to your case)
2 ☒	Office of the MN Attorney General Suite 1400 445 Minnesota Street St. Paul, MN 55101 (Required)	6 ☒	_____ County Sheriff's Office Attn: Records _____ _____ (Required)	10 ☐	MN Dept. of Health Attn: Reconsideration Unit / Expungements P.O. Box 64970 St. Paul, MN 55164-0970 (check box & use if related to your case)
3 ☒	MN Dept. of Corrections Attn: Records 1450 Energy Park Drive, Ste. 200 St. Paul, MN 55108-5219 (Required)	7 ☐	_____ Police Dept. Attn: Records _____ _____ (check box & use if related to your case)	11 ☐	MN Dept. of Natural Resources 500 Lafayette Road Box # 47 St. Paul, MN 55155-4040 (check box & use if related to your case)
4 ☒	_____ County Attorney's Office Attn: Criminal Records _____ _____ (Required)	8 ☐	_____ City Attorney's Office (Prosecutor) Attn: Criminal Division _____ _____ (check box & use if related to your case)	12 ☐	MN Driver and Vehicle Services Attn: Fines & Investigations 445 Minnesota Street, Suite 190 St. Paul, MN 55101-5190 (check box & use if related to your case)

13 MN State Patrol Attn: Expungements 445 Minnesota Street, Suite 190 St. Paul, MN 55101-5190 ☐ <i>(check box & use if related to your case)</i>	14 ☐ _____ _____ _____ <i>(check box & use if related to your case)</i>	15 ☐ _____ _____ _____ <i>(check box & use if related to your case)</i>
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I declare under penalty of perjury that everything I have stated in this document is true and correct. Minn. Stat. § 358.116.

Date

County and state where signed:

Signature (person who mailed the papers)

Printed Name: _____

Address: _____

City/State/Zip: _____

Telephone: _____

State of Minnesota

District Court

County of: _____

Court File Number: _____

Judicial District: _____

Case Type: Criminal

State of Minnesota

Plaintiff

VS

Maria-Alejandra O'Shaughnessy-Whitfield

Defendant

Date of Birth: 1968-12-31

Order Concerning Sealing/Expunging of Records (EXP105)

Minn. Stat. § 609A.02, subd. 3

On _____ (date), the Court considered the *Petition for Expungement* in the above matter.

Appearances were:

☐ Petitioner (Petitioner is the same person as the Defendant in the underlying criminal matter)

☐ Prosecuting Authority: _____

☐ Other: _____

☐ Waived

The Court finds:

1. The Petitioner was charged with the crime(s) of: _____

2. ☐ The above-entitled criminal action was determined in favor of the Petitioner;

☐ The Petitioner successfully completed the terms of a diversion program or stay of adjudication and has not been charged with a new crime for at least one year since completion of the diversion program or stay of adjudication;

☐ The Petitioner was convicted of a petty misdemeanor or misdemeanor, or the sentence imposed was within the limits provided by law for a misdemeanor, and the Petitioner has not been convicted of a new crime for at least two years since discharge of the sentence for the crime;

- ☐ The Petitioner was convicted of a gross misdemeanor, or the sentence imposed was within the limits provided by law for a gross misdemeanor, and the Petitioner has not been convicted of a new crime for at least three years since discharge of the sentence for the crime;
- ☐ The Petitioner was convicted of a gross misdemeanor that is deemed to be for a misdemeanor pursuant to Minn. Stat. § 609.13, subd. 2 (2), and has not been convicted of a new crime for at least three years since discharge of the sentence for the crime;
- ☐ The Petitioner was convicted of a felony violation of Minn. Stat. § 152.025 and has not been convicted of a new crime for at least four years since discharge of the sentence for the crime;
- ☐ The Petitioner was convicted of a felony that is deemed to be for a gross misdemeanor or misdemeanor pursuant to Minn. Stat. § 609.13, subd. 1(2), and has not been convicted of a new crime for at least four years since discharge of the sentence for the crime if the conviction was for an offense listed in Minn. Stat. § 609A.02, subd. 3(b), or five years since discharge of the sentence for the crime if the conviction was for any other offense; or
- ☐ The Petitioner was convicted of a felony violation of an offense listed in Minn. Stat. § 609A.02, subd. 3(b): _____ and has not been convicted of a new crime for at least four years since discharge of the sentence for the crime.
3. The Petitioner has petitioned for the sealing of all records relating to an arrest, indictment or information, trial, or verdict.
4. Petitioner was not convicted of an offense that requires registration under Minn. Stat. § 243.166.
5. ☐ The Petitioner has established that they have not been convicted of a felony or gross misdemeanor, either within or without the state, within the ten years immediately before the dismissal prior to a determination of probable cause, the prosecuting authority's decision to decline to file charges, or the grand jury's decision not to return an indictment.
6. Proper notice ☐ has / ☐ has not been given including notice to any victim if required.
7. ☐ For petitions filed under Minn. Stat. § 609A.02, subd. 3(a)(3-8) (petitioner was convicted), the Petitioner ☐ has / ☐ has not established by clear and convincing evidence that expunging the record would yield a benefit to the petitioner commensurate with the disadvantages to the public and public safety of sealing the record and burdening the court and public authorities to issue, enforce, and monitor an expungement order, as required by Minn. Stat. § 609A.03, subd. 5(a): _____
- _____
- _____

OR

☐ For petitions filed under Minn. Stat. § 609A.02, subd. 3(a)(1) (all actions or proceedings resolved in petitioner's favor), or subd. 3(a)(2) (petitioner successfully completed terms of diversion or stay of adjudication), the law enforcement agency, government agency, or jurisdiction whose records would be affected ☐ has / ☐ has not established by clear and convincing evidence that the interests of the public and public safety outweigh the disadvantages to the Petitioner of not sealing the record, as required in Minn. Stat. § 609A.03, subd. 5(b): _____

8. There ☐ is / ☐ is not a nexus between the criminal record to be expunged and the Petitioner's status as a crime victim.

IT IS ORDERED:

- ☐ 1. Petitioner's request for sealing/expunging of records is denied.
- ☐ 2. Petitioner's request for sealing/expunging of records is granted. All official records, including all records relating to the arrest, indictment or complaint, trial, and dismissal, shall be sealed by the agencies indicated in paragraph 4 below and the existence not disclosed without court order, except as authorized by law.
- ☐ 3. That for this offense only, all fingerprints and thumbprints, photographs and other identification data except for DNA samples, and all copies of duplicates thereof, shall be sealed by the agencies indicated in paragraph 4 below.
- ☐ 4. This order applies to the following agencies:
- | | |
|--|---|
| ☐ District Court | ☐ MN Attorney General |
| ☐ _____ County Sheriff | ☐ _____ County Attorney |
| ☐ _____ Police Dept. | ☐ _____ City Attorney |
| ☐ MN State Patrol | ☐ Probation/Court Services Dept: |
| ☐ Bureau of Criminal Apprehension | _____ |
| ☐ Department of Corrections | ☐ MN Department of Human Services |
| ☐ Department of Public Safety, Driver and Vehicle Services Division | ☐ MN Department of Natural Resources |
| | ☐ MN Department of Health |
| | ☐ _____ |

- ☐ 5. This order, which finds a nexus between the criminal record and the Petitioner's status as a crime victim, restores the Petitioner to the status occupied before the arrest. The Petitioner will not be guilty of perjury for failure to acknowledge the arrest or proceeding in response to any inquiry made for any purpose.
- ☐ 6. The court administrator shall send a copy of this expungement order to each agency and jurisdiction whose records are affected, and send a copy of this order to the Petitioner along with notice identifying each agency that was sent a copy of the order.
7. The Petitioner shall continue to be prohibited from shipping, transporting, possessing, or receiving a firearm for the remainder of the Petitioner's lifetime if the conviction was for a crime of violence and an order was not issued under Minn. Stat. § 609.165, subd. 1d.
- ☐ 8. Other: _____

NOTE: This order is stayed for 60 days, during any appeal, and until any remaining restitution or other financial obligation on the case is paid in full. Records will not be sealed until after this time.

Dated: _____
Judge of District Court

**Petitioner's Instructions for Expungement
(Sealing) of Criminal Records
(Minn. Stat. §§ 609A.01 - .03)**

Please read all instructions before filling out paperwork. You will need to make additional copies if you are seeking to expunge more than one file.

- **A Motion to Expunge is a complicated procedure.**
- **If you have any questions or are in need of more assistance, you should [contact an attorney](http://mncourts.gov/Help-Topics/Find-a-Lawyer.aspx)** (mncourts.gov/Help-Topics/Find-a-Lawyer.aspx).
- **The court administrator's office cannot give you legal advice.**

You may also want to view the "What is Criminal Expungement" video, as well as the tutorial on how to complete the expungement forms. These materials are available on the Minnesota Judicial Branch website at www.mncourts.gov under Help Topics / Criminal Expungement. Contact a Self-Help Center (www.mncourts.gov/selfhelp) if you have questions about these instructions or the criminal expungement process.

EXPUNGEMENT OR SEALING OF A RECORD – WHAT IT MEANS

[Minn. Stat. ch. 609A](http://revisor.mn.gov/statutes/cite/609A) (revisor.mn.gov/statutes/cite/609A) states that the expungement of criminal records is limited to a court order sealing records and prohibiting disclosure of their existence or their opening except under court order or statutory authority. Nothing in the law authorizes destruction of records or their return to you. A judicial officer must decide this petition.

Once sealed/expunged, a record will not be available to the general public. However, for orders issued before January 1, 2015, [Minn. Stat. § 609A.03, subd. 7](http://revisor.mn.gov/statutes/cite/609A.03) (revisor.mn.gov/statutes/cite/609A.03), states that law enforcement agencies, prosecution or correctional authorities, may seek an order signed by a judicial officer to re-open a sealed case for the purpose of a criminal investigation, prosecution or sentencing. The records may be opened for the purposes of evaluating a prospective employee of a criminal justice agency, without a court order, pursuant to Minn. Stat. § 609A.03, subd. 7, or for certain social services licensing purposes. For orders issued on or after January 1, 2015, Minn. Stat. § 609A.03, subd. 7a, states the limitations of an expungement order and provides authority for certain agencies to access and share expunged records under certain circumstances.

YOU MAY QUALIFY FOR AN EXPUNGEMENT UNDER MINNESOTA STATUTE ch. 609A IF:

- The charges were dismissed, you were found not guilty, or the case did not otherwise result in a guilty plea or finding, or a conviction.
- You successfully completed the terms of a diversion or stay of adjudication, or were convicted of a crime that qualifies for expungement under [Minn. Stat. § 609A.02, subd. 3](http://revisor.mn.gov/statutes/cite/609A.02) (revisor.mn.gov/statutes/cite/609A.02), and the required amount of time has passed.

- You were charged with a controlled substance offense - the proceedings have been dismissed and discharged.
- You were a juvenile prosecuted as an adult.
- The Board of Pardons has granted you a pardon extraordinary.

In the situations listed above, the court can order all records of that criminal case kept in Minnesota to be sealed. If there is no court file (the prosecutor did not file formal charges or the grand jury did not file an indictment) and you have not been convicted of any felony or gross misdemeanor in any state for the preceding 10 years, a petition to the court is not necessary to expunge your arrest record. You should contact the arresting agency and/or the BCA [[Minn. Stat. § 299C.11, subd. 1\(b\)](http://revisor.mn.gov/statutes/cite/299C.11)], revisor.mn.gov/statutes/cite/299C.11].

If you were convicted in any other situation, your case does not meet the criteria under [Minn. Stat. ch. 609A](http://revisor.mn.gov/statutes/cite/609A) (revisor.mn.gov/statutes/cite/609A). Expungement of a conviction not meeting the 609A criteria is possible, but rare and can only be granted for the court's records. Records of your arrest and prosecution held by the police, sheriff's office, prosecutors and the BCA would not be affected by such an expungement order. Certain crimes can be expunged only if you can convince the court that you have made changes in your life that demonstrate you are very unlikely to commit another crime, and that the benefit to you from an expungement outweighs the burden of sealing the records.

To request expungement of a conviction not meeting the 609A criteria, check the last box of item #9 of the Petition which states "I was convicted of an offense that does not qualify for expungement under Minn. Stat. § 609A.02, subd. 3, but I have rehabilitated myself. The benefit to me outweighs the disadvantage to the public and the burden on the court." An order expunging a conviction under these circumstances may provide only for expungement of the record held by state courts and may not expunge records held by state or local law enforcement and prosecution agencies.

Helpful materials may be found at your public county law library. For a directory, see <http://mn.gov/law-library/research-links/county-law-libraries.jsp> . For more information, contact your court administrator or call the Minnesota State Law Library at 651-297-7651.

PROCEDURES FOR EXPUNGEMENTS

A. COMPLETELY FILL OUT A SEPARATE PETITION AND ORDER FOR EACH CASE YOU WANT EXPUNGED:

1. NOTICE OF HEARING AND PETITION FOR EXPUNGEMENT

You must fill out this document completely and sign your name. IT IS MANDATORY that you list all prior and pending criminal charges in this or any other state on this petition as well as any stays of adjudication, continuances for

dismissal, or pretrial diversions in any jurisdiction. If you are unsure about your court records, all Minnesota counties have public access terminals where you may look up your case information. The Minnesota Bureau of Criminal Apprehension (BCA) will provide a printed record for a fee. You may contact the BCA at 651-793-2400 for more information.

Obtain a hearing date from Court Administration to be inserted in the notice. This date must be more than 60 days from the date notice is mailed plus 3 days for mailing.

2. PROPOSED ORDER TO EXPUNGE CRIMINAL RECORDS

You must complete a separate order for each case that you want expunged. There are three types of orders (court form EXP105, court form EXP106, or court form EXP107). Use the one appropriate to your situation, as indicated on the petition (court form EXP102).

3. REQUEST FOR WAIVER OF FILING FEE - If you are not requesting expungement of an action or proceeding that was resolved in your favor, and you will be seeking waiver of the filing fee, additional papers need to be completed. See section D to see if you qualify for fee waiver. You will need to ask for a waiver form specifically. Fee waiver forms are available at <https://mncourts.gov/GetForms.aspx?c=19&p=69>. You will have to provide financial information to have the court determine whether you qualify to have the fee waived. The fee or the order waiving the fee must be submitted when the petition is filed.

B. MAKE COPIES OF THE COMPLETED FORMS YOU WILL NEED FOR SERVICE ON EACH AGENCY AND THEIR ATTORNEYS.

[Minn. Stat. § 609A.03, subd. 3](#) (revisor.mn.gov/statutes/cite/609A.03), requires that a Notice of Hearing and Petition and unsigned proposed expungement order on ALL state and local agencies and their attorneys that might have a record of the offense you want to expunge. Most people need to serve **at least 6 agencies**; for example, the Minnesota Bureau of Criminal Apprehension, the Attorney General's Office, the local police department, the prosecuting attorney, the sheriff's department, county attorney, and county department of corrections (probation).

Items to copy and serve:

1. Notice of Hearing and Petition(with the scheduled hearing date completed)
2. The unsigned proposed Order you are seeking to have the judicial officer issue.

IMPORTANT! Get legal advice about serving **OTHER** agencies such as the MN Dept. of Human Services (regulates employment in health care, education, day care, foster care, etc.) or licensing agencies (for teaching, nursing, real estate, etc.) Depending on your situation, serving those agencies may or may not be in your best interest.

C. PROCESS FOR SERVICE

You are responsible to see that service is done properly. Court staff cannot serve the documents for you. Service can be done by another adult, or by you. The server must mail a copy of all required documents and fill out the Proof of Service. Service must be complete at least 63 days before the scheduled hearing date.

1. Fill out these parts of the *Proof of Service* form:

Get a **separate** *Proof of Service* form for **each court case** you want to expunge. **Example:** If you want to expunge 3 different court cases, you must prepare a separate *Proof of Service* form for each case, for a total of 3 service forms.

YOU must fill in the blanks for the **government agency addresses** on the *Proof of Service* form. Write the County name and the City name where the offense happened (or where you were arrested), and write the address for each local government agency related to that case. If you decide to serve the MN Dept. of Human Services and/or Dept. of Health, check the box next to their address listed on the form. If you are serving other agencies, write their names and addresses in the extra spaces on the form and check those boxes.

Using the **same court information** from your criminal case, you must fill in the blanks at the top of the *Proof of Service* form with the County, Judicial District and Court File Number. **STOP!** The server must fill out the other blanks on the form. See #3 below called **“How the server must complete the *Proof of Service* form.”**

2. Get copies of your expungement papers ready to be served.

Your expungement papers can be **served by first class U.S. mail**. Copies of the *Proof of Service* do **not** have to be mailed to the government agencies.

STEP 1: Make copies of your completed *Petition* and proposed *Order*.

Make one copy of your completed *Petition* (and any attachments) and proposed *Order* for **each government agency**, and make one copy for yourself. Copies can be double-sided to save on cost. **Example:** If you are serving 8 agencies checked in your *Proof of Service*, you need to make 9 copies of your papers (1 for each agency + 1 for you).

Do not count your ORIGINALS as a “copy” in the total. **Keep the ORIGINAL *Petition* and proposed *Order*** to file with the court as soon as possible after service of your papers is complete.

STEP 2: Address an envelope for each government agency checked on your *Proof of Service* form.

If you want to expunge only one case, a set of copies should fit into a regular business-size envelope. You need larger envelopes to hold expungement papers for two or more cases. Most people need at least **6 envelopes**, or more if they serve a City Attorney and regulatory/licensing agencies. You should write **your return address** on the envelopes.

NOTE: If you want to expunge more than one case in the **same County**, you can put copies for each case into the same envelope addressed to a government office. **Example:** If you are asking to expunge 5 cases, you can put a set of copies for each case into one large envelope addressed to the BCA; then do the same for the other government agencies. **STOP!** If any of the 5 offenses happened in **different cities** within the County, be sure to serve the correct copy of **expungement** papers on the correct **local** government agencies (police & prosecutor) where **each** offense happened.

STEP 3: Add enough postage to each envelope to send by 1st class U.S. Mail.

The amount of postage you need depends on the number of pages in each envelope. It's a good idea to weigh your envelopes at a Post Office, and buy the correct postage. You **do not** need to use "certified" or "return receipt" mail. **STOP! Do not** let a Post Office employee put the envelopes in the mailbox!

STEP 4: The server mails the envelopes.

The server puts your envelopes in a U.S. mailbox and follows the instructions below to complete the *Proof of Service* form.

STEP 5: After mailing, the server must complete the *Proof of Service* form.

When the form is completed, you will file it with the court.

3. How the server must complete the *Proof of Service* form.

AFTER the server places your envelopes in a U.S. mailbox, the server must fill out the blanks on the *Proof of Service* form as follows:

- write in the name of the **County** where the *Proof of Service* form is **signed** (can be different from where case is filed);
- write **the server's name** in the blank for the person who mailed the envelopes;
- write the **date** they mailed the envelopes. This date must be **at least 63 days BEFORE** the hearing date;

- write in the name of the **City** where they mailed the envelopes; and
- **sign** the *Proof of Service*.

If another adult served for you, then after completing these steps, they should give the signed *Proof of Service* form **back to YOU**.

D. FILING THE PAPERWORK WITH DISTRICT COURT

After copies of the documents have been served on all required agencies and their attorneys, the Notice of Hearing and Petition for Expungement, the proposed order along with written proof (Proof of Service) that all agencies have been served must be filed with the court administrator's office. File your documents as soon as you have completed the service process.

- A filing fee is not required for cases that were "resolved in your favor." This means no filing fee is required if you were not convicted, were not found guilty, and did not plead guilty in the case, or you were exonerated under Minn. Stat. § 590.11. If the case was "resolved in your favor," inform court personnel that the filing fee is waived by statute.
- A filing fee is required for cases in which you were convicted or where you were found guilty by the court or entered a guilty plea, even if you were not convicted or the conviction was later vacated.

Check with the court administrator in the county where you are filing for the correct filing fee amount. If you do not qualify for fee waiver under statute, you may ask the court to waive the filing fee by completing a form called *Affidavit to Request Fee Waiver* and following the instructions given to you by court personnel. Forms are available online at <https://mncourts.gov/GetForms.aspx?c=19&p=69>.



Write the **court date and time** on your calendar! The court may not send you a reminder. If you don't go to your hearing, you might have to start over from the beginning.

E. AGENCY OPPORTUNITY TO OBJECT

Each agency that you serve with the petition and proposed order has an opportunity to provide information to the court for its consideration of your request. If an agency

chooses to provide information to the court, it must send you a copy of what it submits and will use the address you list in the petition.

F. THE COURT HEARING

You must appear at the hearing. Bring your copies of the documents along with you to court for your own reference. The original documents should already be in the court file.

At the hearing, the judicial officer will review your petition and any attachments you have submitted. The judicial officer will also consider any information presented by the prosecutor, any of the various government agencies and any victim. A victim has the right to submit an oral or written statement to the court. You may be required to testify and be cross examined by attorneys for any agency or office that opposes your request.

The judicial officer may not make a decision at the time of the hearing and may or may not grant the expungement. The judicial officer may sign the proposed order that you have provided (granting or denying your request) or may prepare his or her own order. The judicial officer may deny expungement if your request does not meet the necessary qualifications even if no one objects.

When the order is signed, the court administrator's office will send a copy of the order to all the agencies named in the order to receive notice. If your request was granted, these agencies have 60 days to appeal the order. Your record remains public during this period, while any appeal is pending, and while any financial obligation owed on the case remains unpaid. Any party whose records will be affected by the order may file an appeal to the Minnesota Court of Appeals. If an appeal is filed, you will be responsible for representing yourself or retaining an attorney to represent you. If no appeal is filed, and you do not owe any financial obligation, the record will be sealed 60 days after the filing of the order. It is a good idea to obtain a certified copy of this order for your own records. A certified copy fee will be charged unless you have an in forma pauperis (IFP) order.

REMINDER: CONTACT AN ATTORNEY IF YOU NEED MORE ASSISTANCE.

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See Instructions (FEE101) for help in filling out this form.

State of Minnesota

District Court

County of: _____

Court File Number: _____

Judicial District: _____

Case Type: _____

Plaintiff/Petitioner

VS/AND

Maria-Alejandra O'Shaughnessy-Whitfield

Defendant/Respondent

Affidavit to Request Fee Waiver (FEE102)

Minn. Stat. § 563.01

1. I am a party in this action. I am not filing on behalf of a business. In good faith, I ask for a court order waiving court fees and costs. I cannot support my family and myself and also pay or give security for costs.
2. I believe that I have good reasons for making this request.

Choose one:

- ☐ I am including my pleadings with this *Affidavit* (or I have already filed my pleadings but have not yet paid the filing fee).

→ Examples of pleadings include the petition, complaint, answer, motion, etc.

OR

- ☐ I only want to have copy fees waived. I do not have any pleadings to file at this time.

3. ☐ I have a lawyer through a civil legal services program or volunteer attorney program that gives legal services to people with low incomes.

My lawyer's name is: _____

My lawyer works or volunteers for: _____

**If you checked #3, skip to the end of this form and sign the last page.
You do not need to fill out the rest of the form.**

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4. ☐ I do not receive public assistance. (If checked, skip to #5)

OR

- ☐ I receive public assistance. (Choose “a” or “b”)

- a. ☐ I receive public assistance under one or more of the following programs:

- ☐ SSI (Supplemental Security Income)
- ☐ MSA (Minnesota Supplemental Security Aid) or Emergency MSA
- ☐ GA (General Assistance) or Emergency GA
- ☐ SNAP (Supplemental Nutrition Assistance Program, also known as food stamps)
- ☐ MFIP (Minnesota Family Investment Program), MFIP Diversional Work Program (DWP), or Work Participation Cash Benefit
- ☐ MinnesotaCare or Medical Assistance
- ☐ Receipt of part D extra help or payment by the government of Medicare part B premiums
- ☐ Emergency Assistance or county crisis funds;
- ☐ Energy or Fuel Assistance

OR

- b. ☐ I receive public assistance through a different program based on my income: (list the program) _____

I will include proof that I receive public assistance listed in 4a and 4b.

→ Examples of proof include a copy of EBT card, statement of benefits, benefits award letter, cancelled check from an agency, etc.

If you checked a box in #4a, skip to the end of this form and sign the last page. You do not need to fill out the rest of the form.

If you only checked #4b, continue filling out the form.

5. My household size is _____.

→ Include yourself, your spouse or significant other, your children who are under age 18 (or over 18 but still in high school), and other dependents in your home. Dependents are people who rely on you for most of their financial support, and can include parents, children over the age of 18, or extended family members.

My household, other than myself, includes:

Name	Age	Relationship to you

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Name	Age	Relationship to you

If you need more space, add another sheet of paper with your name and court file number, if you know it.

6. I receive income from the following sources (check all that apply):

☐ Job/wages ☐ Unemployment ☐ Social Security

☐ Child Support ☐ Spousal Support ☐ Trust Income

☐ Other (for example: disability, pension, rental income): _____

→ Include income from all the sources you checked above. To calculate monthly income you get from a job:

- Multiply the number of hours worked per week by your hourly pay to get the weekly amount.
- Then multiply that by 4.33 to get the monthly amount.
- In summary: hours per week x hourly pay x 4.33 = monthly income before taxes and deductions).

→ If your monthly income changes a lot from month to month, then you should answer the question below based on your *average* monthly income for the last 6 months. To calculate your average income:

- Add your total monthly income from the last 6 months.
- Then divide that number by 6
- In summary: last 6 months of income added together ÷ 6 = average monthly income.

My total **monthly** income (before taxes and deductions) is \$_____

OR

☐ My **average** monthly income (before taxes and deductions) is \$_____

7. I am ☐ **not married** (skip to #8).

OR

I am (check all that apply): ☐ married ☐ separated ☐ getting a divorce

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My spouse's total **monthly** income (before taxes and deductions) is \$_____.

The source of that income is _____
_____.

OR

I do not know my spouse's income because: _____

_____.

8. ☐ I do not have any other family members or dependents living with me that have income.

OR

- ☐ I have other family members and/or dependents living with me that have income. Their net (take home) **monthly** income is:

Name	Monthly Income	Source of Income
	\$	
	\$	
	\$	

If you need more space, add another sheet of paper with your name and court file number, if you know it.

9. My household's total **yearly** income (before taxes and deductions) is \$_____.

- ☐ This is **less** than 125% of the Federal Poverty Line for my household size of _____.

OR

- ☐ This is **more** than 125% of the Federal Poverty Line for my household size of _____.



Find the Federal Poverty Guidelines in the [Fee Waiver Instructions](#) (FEE101), which you can find by scanning the QR Code.

I have attached proof of my household income.

→ Examples of proof include most recent tax returns, pay stubs of all household members with income, etc.

If your income is less than 125% of the Federal Poverty Line, skip to the end of this form and sign the last page.

You do not need to fill out the rest of the form.

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10. I pay the following **monthly expenses**:

→ Include amounts you pay for yourself, your spouse or significant other, your minor children, and other dependents in your home; if you do not have the expense, list \$0.

Rent or mortgage:	\$ _____	Child support:	\$ _____
Utilities:	\$ _____	Childcare:	\$ _____
Food:	\$ _____	Medical insurance:	\$ _____
Car payments:	\$ _____	Cell phone:	\$ _____
Car insurance:	\$ _____	Other (explain):	\$ _____
Spousal support:	\$ _____		_____

11. I am \$ _____ in debt.

→ Do not include any car loan, real estate loan, or mortgage.

12. I have the following money available:

→ List \$0 if you don't have these things.

Cash: \$ _____	Accounts: \$ _____ (checking, savings, and/or credit union)
----------------	---

13. I own the following property (list the equity value of the item, which is what you could sell the item for minus the amount you still owe on the item, if anything):

Vehicle 1	
Year and make: _____	\$ _____
Vehicle 2	
Year and make: _____	\$ _____
House I live in now	\$ _____
Other real estate	\$ _____
Other personal property (jewelry, stocks, bonds, etc.; list separately):	
_____	\$ _____
_____	\$ _____
_____	\$ _____

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14. Other reasons why I cannot afford to pay the court fees (explain unusual medical expenses, emergencies, credit card payments, student loans, reasons that the listed money is not available to you, or other circumstances to help the judicial officer understand your situation):

I declare under penalty of perjury that everything I have stated in this document is true and correct.
Minn. Stat. § 358.116

Date: _____ Signature: _____

County and state where signed: _____

Name: Maria-Alejandra O'Shaughnessy-Whitfield
Address: 1188 Upper Tallahatchie Crossing Road, Apartment 14B
City, State, Zip: Fort Saint Clairsville, MN 56501-2214
Phone: (218) 555-0199 ext. 4417
Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

What is next?

- ➔ Put this form together with your pleadings (petition, complaint, motion, answer, etc.) and proof of public assistance or proof of your financial need.
- ➔ File these documents with Court Administration by mail, in person or electronic filing (eFiling).
- ➔ A judicial officer will review your request. They will grant or deny your request.
- ➔ If the judicial officer grants a *full* fee waiver, you will not have to pay any filing fees, service, and publication fees, or copy fees for the case in which your fee waiver was granted. If they grant you a *partial* waiver, you will have to pay part of the fees and costs.

Need help?

- ➔ Scan the QR code above for instructions on how to fill out this form.
- ➔ Contact the Statewide Self-Help Center at (651) 435-6535.